

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**COMPLAINANTS' RESPONSE TO RESPONDENTS MOTION
FOR WHO KNOWS WHAT**

Pursuant to Rules 69 and 71 of the Federal Maritime Commission's (the "Commission") Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this response to respondents' apparent motion to strike and for other relief in the guise of a "Conditional Response to Complainants' Unauthorized Sur-Reply". While purporting to be a "Conditional Response" (whatever that is meant to mean) to a "Sur-Reply", Respondents repeatedly request that the Commission grant various forms of relief against Complainants and the undersigned. As such, this is a motion to which Complainants have a right to respond.

In the first instance, the undersigned vehemently objects to respondents' gross violation of the Rules of Practice and Procedure, by submitting an unsolicited motion in the guise of a "Conditional Response" which was filed in response to Complainants' recent Status Report. At the outset, it is noted that respondents' so-called Conditional Response is not a 'Response' at all; rather, said purported Response is yet another example of respondents' counsel by Mr. Jeffrey (who holds himself out to be a peerless expert on the Rules of Practice and Procedure) disingenuously using procedural contrivances as a "trojan horse" to repeatedly and wrongfully take "additional bites at the apple", by improperly asserting a request for affirmative relief that the Commission: (1) disregard (to wit: strike and correct the record) Complainants' recently filed Status Report; and (2) "consider" various information in support of Jeffrey's Ethical Exceptions, which is more properly the subject of motion practice as opposed to a fallacious Response.¹

Additionally, and as reflected in this and other recent filings, respondents have now abandoned any pretense of trying to follow the FMC Rules. They have failed to observe the requirement to confer before making a non-dispositive motion and to show such conferral in the motion. Respondents' Motion to Strike and for other relief described above is indisputably a non-dispositive motion, as it is not a "motion for a final determination of all or part of [this] proceeding." Rule 69(g).²

Proceedings regarding such motions are thus governed by Rule 71. Rule 71(a) mandates that (i) [b]efore filing a non-dispositive motion, as defined in 5026.9(g)[,] the parties **must** attempt to discuss the anticipated motion," and (ii) "[t]he moving party **must** state within the

¹ As to the actual substance of Mr. Jeffrey's 'Response', we simply note in passing that the papers contain nothing but filth and *ad hominem* personal attacks.

² Rule 69(g) provides as follows: For the purposes of these rules, dispositive motion means a motion for decision on the pleadings; motion for summary decision or partial summary decision motion to dismiss all or part of a proceeding or party to a proceeding; motion for involuntary dismissal; motion for initial decision on default; or any other motion for a final determination of all or part of a proceeding. All other motions, including motions related to discovery, are non - dispositive motions."

body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed." Counsel for respondents has repeatedly referred to these requirements as a condition precedent to relief. Accordingly, respondents' instant motion to which this responds may be denied in its entirety.

Least respondents and their counsel forget, the only appropriate manner in which complainants could have advised the Commission on the pending civil and criminal proceedings involving Mr. Kapustin and his recent emails regarding respondents' misrepresentations of fact in this matter, as well as their preparation of documents on his behalf was by way of a Status Report which does not request affirmative relief. In Mr. Jeffrey's own words:

"...I was recently reminded in another FMC proceeding that a status report, requested or not, is the way to advise a Presiding Officer of developments where no relief is requested...". See, Respondents' Reply to Complainants' Motion for Who Knows What, dated September 2, 2016 (FMC Docket 15-11, Document 110).

Jeffrey also argues in respondents' motion to which this responds that the email from Kapustin to Jon Werner, Esq. annexed to complainants' status report is of "little moment" due to the email being "...about the other, judicial proceedings, and say nothing relevant to this proceeding before the FMC", and that "...these emails, directed to Empire's counsel in those matters, are entirely in Russian." Jeffrey further explains that "Mr. Werner does not know Russian, and neither read these emails nor forwarded them to Mr. Hitrinov." (Werner also affirms to the foregoing in his Affirmation accompanying respondents' motion).³

With regard to the foregoing, annexed to the accompanying Certification of Marcus A. Nussbaum (as Appendix "1" thereto) is a series of emails which were forwarded to me by

³ Jeffrey also argues with regard to one of the emails that: "Curiously, an email as received by Mr. Werner, apart from being Russian, had no attachment...". We note that curiously, Werner does not falsely claim in his Affirmation that he never received the attachment (Jeffrey's statement is clearly belied by the printout of the email itself in Werner's Affirmation as his Exhibit "2" showing that Werner received the attachment) - - only Jeffrey could do that.

Kapustin on August 15, 2015 and which appears to be part of an ongoing conversation between Kapustin (who appears to be communicating in Russian which is spelled out phonetically in English) and Werner, who appears to completely understand and timely respond to all of Kapustin's emails.

Notably, in this series of emails, Werner states as follows:

“Mr. Kapustin, In my dealings with you I have always treated you with respect...”

It would seem that respondents' notion of the meaning of the word “respect” (and that of their counsel for that matter) is different from most, when Kapustin can be seen in the balance of the emails asking: “What should I do to have you leave me alone? What do you want already?”.

It may be that respondents' notion of respect is to threaten an adversary with death threats, for example, in response to Kapustin's request that respondents provide him with a settlement offer: “Where is your offer for resolution of the questions. I anticipate that it will be reasonable.” In response to this request, Werner explains:

“My clients understand that you are a wealthy man but not as wealthy as the deceased Mr. Berezovsky”.⁴

In that very same email, curiously and after connecting Kapustin to the deceased Mr. Berezovsky, Werner makes reference to a demand for \$35,000,000 and explains that his clients are seeking a “...possible reasonable resolution of their claims against [Kapustin] and [his] companies”.

On March 28, 2016, complainants counsel received an email (annexed to the Accompanying Nussbaum Certification as Appendix “6” with translation as Appendix “7”) from Kapustin which attached what appears to be an Affidavit for Judgment by Confession (The

⁴ Boris Abramovich Berezovsky was a Russian business oligarch, government official, engineer and mathematician. He was found dead at his home, Titness Park, at Sunninghill, near Ascot in Berkshire, on 23 March 2013. A post-mortem examination found that his death was consistent with hanging and that there were no signs of a violent struggle. However, the coroner at the inquest into Berezovsky's death later recorded an open verdict. See, [https://en.wikipedia.org/wiki/Boris_Berezovsky_\(businessman\)](https://en.wikipedia.org/wiki/Boris_Berezovsky_(businessman)).

Affidavit is annexed to the accompanying Nussbaum Certification as Appendix “8”. A translation of the email, provides as follows:

“Maria, Anna, Marcus, I am sending you a document, which was prepared for my signature by Hitrinov and his lawyer..... Hitrinov is always threatening me with physical means and criminal prosecution, I cannot live like that as there is a threat of violence is against my life. He is constantly offering me to sue the lawyers, all the translations were done for me by Hitrinov..... and all the filings in court are done by Michael Hitrinov,..... I ask you to communicate it to the court.”

In his email, Kapustin confirms that the Affidavit for Judgment by Confession “was prepared for [his] signature by Hitrinov and his lawyer”. That representation would not be far-fetched inasmuch as the Affidavit is a very detailed legal document consistent with the New York rules of Civil Procedure, created solely for the benefit of respondents, and would have directly affected the outcome of this case had Kapustin chosen to execute it.

Additionally annexed to the Nussbaum Certification Appendix “3” is an email which was received from Kapustin on May 27, 2016 with the subject line: “shipping documents to review”, wherein Werner on behalf his law firm Lions & Flood LLP writes to Kapustin, explaining “We recently received the attached documents from Mr. Nussbaum and kindly ask you to review them.” The attachments are two separately filed Notices of Filing in the instant matter, and the cover pages of each Notice, together with the affidavits of service accompanying each attachment, are annexed hereto as Appendix “4” and “5”. - - The undersigned notes in passing that contrary to his statement to Kapustin, I never provided Mr. Werner or Lions & Flood LLP with any of these documents, nor has Werner formally appeared as counsel for respondents in this matter. Inasmuch as on May 27, 2016 (the date of Werner’s email above) the Notice of Filing from Informal Docket 1953(I) was not available for public viewing on the Commission’s website, Werner could only have received those documents from Jeffrey.

Respondents may dispute the veracity of the content of the Kapustin emails cited herein, as well as their relevance to the Commission, however, the one thing that may be certain is that by sending the emails to the undersigned, as well as to counsel in the related matter ongoing in Federal Court, that Kapustin was trying to warn the undersigned and other counsel as to respondents' ongoing attempts to subvert these and other proceedings - - a point that should be impressed upon the Commission.

An additional point for the Commission's reference in considering this response to respondents' motion, is with regard to Jeffrey apparently arguing with the U.S. Attorneys Office. Jeffrey explains as follows:

“...there are two different warehouses in Kotka. The warehouse described in the Information is the warehouse owned and operated by Global Cargo Oy, a company owned/controlled by Mr. Kapustin, and the place where Mr. Kapustin delivered vehicles to purchasers. The other warehouse, adjacent to Global Cargo Oy, is that of CarCont, an independent warehouse where, at Mr. Kapustin's direction, cars were released to, and only to, Global Cargo Oy. No vehicles were ever released from CarCont to persons other than designated representatives of Global Cargo Oy, and indeed, Respondents had no information as to the name/identity of the purchasers of any vehicles...”.

Again, these are the facts according to Jeffrey. Reality may be a very hard pill for him to swallow inasmuch as it is clear to all that that the Criminal Complaint Annexed as Appendix “1” to Complainants' Status Report of January 15, 2-017 (Document 142) states as follows:

“Victim 2 has attested that... in December 2012, KAPUSTIN told Victim 2 that the car was in Kotka, Finland but couldn't be released, and Victim 2 was told to call CarCont, Ltd in Kotka for an explanation...CarCont, Ltd. refused to release the car, without significant additional charges...[and that Victim 2 was] unable to determine if his/her car in fact was in Kotka...[and that] Victim 2 sought, but was refused, a refund of the \$22,920 purchase price.”

Neither complainants herein, nor the U.S. Attorneys Office are talking about Global Cargo Oy, rather, the focus here is and always has been respondent Hitrinov, and his companies (including CarCont Ltd.). It was CarCont at Hitrinov's direction and request that “refused to release the car...”.

Last, but not least and with regard to Jeffrey's continued *ad nauseum* references to alleged ethical issues arising out of attorney client privilege involving the undersigned and Kapustin, annexed to the Nussbaum Certification as Appendix "9" for the Commission's reference is a copy of Kapustin's Waiver of Attorney Client Privilege which he executed on January 15, 2016.

In closing, respondents' apparent motion to strike and for other relief in the guise of a "Conditional Response to Complainants' Unauthorized Sur-Reply" should be denied for numerous reasons, including the fact that respondents failed to observe the requirement to confer before making a non-dispositive motion and to show such conferral in the motion.

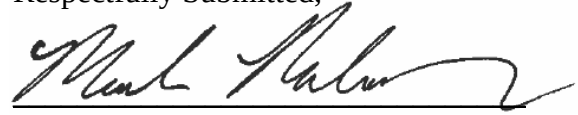
Additionally, respondents cannot dispute that the only appropriate manner in which complainants could have advised the Commission on the pending civil and criminal proceedings involving Mr. Kapustin and his recent emails regarding respondents' misrepresentations of fact in this matter, as well as their preparation of documents on his behalf was by way of a Status Report.

Further, the emails annexed to the status report and this response to respondents' motion, are more than of "little moment" and for the reasons cited herein, are relevant to this and indicative of respondents' attempts to subvert these proceedings and engage in witness tampering (first by attempting to obtain Kapustin's cooperation by offering him money and by authoring documents for him to sign, and then by threatening his life).

WHEREFORE, it is respectfully requested that respondents' motion be denied, along with such other and further relief as the Commission may deem just and proper under the circumstances.

Dated: July 31, 2018
Brooklyn, NY

Respectfully Submitted,

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', written over a horizontal line.

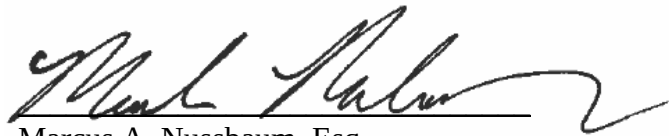
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' RESPONSE TO RESPONDENTS MOTION FOR WHO KNOWS WHAT** and **CERTIFICATION OF MARCUS A. NUSSBAUM** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and via email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", is written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: Brooklyn, New York
July 31, 2018

**BEFORE THE
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IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

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CERTIFICATION OF MARCUS A. NUSSBAUM

Marcus A. Nussbaum, pursuant to 28 U.S.C. § 1746, making the following Certification under penalty of perjury, in lieu of oath or affidavit says:

1. I am a citizen and resident of the State of New Jersey and am a member in good standing of the Bars of the States of New Jersey and New York. I submit this Certification in response to respondents' apparent motion to strike and for other relief in the guise of a "Conditional Response to Complainants' Unauthorized Sur-Reply".

2. Jeffrey also argues in respondents' motion to which this responds that the email from Kapustin to Jon Werner, Esq. annexed to complainants' status report is of "little moment"

due to the email being “...about the *other, judicial proceedings*, and say nothing relevant to *this proceeding* before the FMC”, and that “...these emails, directed to Empire's counsel in those matters, are entirely in Russian.” Jeffrey further explains that “Mr. Werner does not know Russian, and neither read these emails nor forwarded them to Mr. Hitrinov.” (Werner also affirms to the foregoing in his Affirmation accompanying respondents’ motion).

3. With regard to the foregoing, annexed hereto as Appendix “1” is a series of emails which were forwarded to me by Kapustin on August 15, 2015 and which appears to be part of an ongoing conversation between Kapustin (who appears to be communicating in Russian which is spelled out phonetically in English) and Werner, who appears to completely understand and respond to Kapustin’s emails.

4. A translation of Kapustin’s emails (Russian spelled phonetically in English) which I did myself is annexed hereto as Appendix “2”.

5. Additionally annexed hereto as Appendix “3” is an email which I received from Kapustin on May 27, 2016 with the subject line: “shipping documents to review”, wherein Werner on behalf Lions & Flood LLP writes to Kapustin, explaining “We recently received the attached documents from Mr. Nussbaum and kindly ask you to review them.” The attachments are two separately filed Notices of Filing *in the instant matter*,¹ and the cover pages of each Notice, together with the affidavits of service accompanying each attachment, are annexed hereto as Appendix “4” and “5”. - - I note in passing that contrary to his statement to Kapustin, I never provided Mr. Werner with any of these documents.

6. On March 28, 2016, I received an email from Kapustin to Ms. Temkin’s partner (to wit: Anna Brown, Esq.) and myself, a true and accurate copy of which is annexed hereto as Appendix “6”, with subject “Fwd: document from Hitrinov” and attaching what appears to be an

¹ The cover pages and certifications of service for the Notices are attached, and the contents have been omitted.

Affidavit for Judgment by Confession (the Affidavit itself is annexed hereto as Appendix “8”). A translation of the email, which I did myself, is included in Appendix “7”. The email provides as follows:

“Maria, Anna, Marcus, I am sending you a document, which was prepared for my signature by Hitrinov and his lawyer so they could use as leverage the amount of what is owed to them with the amount of claim that you filed against Hitrinov in Camden court, by this writing Mr. Hitrinov confirms that the client should get nothing and I will not be able to enter the U.S. territory, as Hitrinov is always threatening me with physical means and criminal prosecution, I cannot live like that as there is a threat of violence is against my life. He is constantly offering me to sue the lawyers, all the translations were done for me by Hitrinov, yes I understand that hitrinov is the one who is responsible for what is going on today, and all the filings in court are done by Michael Hitrinov, and everything what the attorney for Krivosheev is doing is done by Hitrinov, I am ready to participate in any court as defendant, witness or injured party. I ask you to communicate it to the court.”

7. Annexed hereto as Appendix “9” is a true and accurate copy of a Waiver of Attorney Client Privilege which Kapustin executed on January 15, 2016.

The foregoing is true and correct to the best of my knowledge under the penalties of perjury under 28 U.S.C. § 1746.

Executed on: July 31, 2018

/s Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.

APPENDIX “1”

Пересл:

Sergey Kapustin <skapustin@yahoo.com>
Reply-To: Sergey Kapustin <skapustin@yahoo.com>
To: "marcus.nussbaum@gmail.com" <marcus.nussbaum@gmail.com>

Sat, Aug 15, 2015 at 8:33 PM

Sergey K.
CEO, President
Global Auto, Inc.

среда, 3 июня 2015 13:00 Jon Werner <jwerner@lyons-flood.com> писал(а):

Mr. Kapustin,

In my dealings with you I have always treated you with respect, and I would appreciate it if you could keep this dialogue on a professional level without any resort to personal comments.

Even though I am in Sweden, my professional obligation requires me to continue to provide my clients with the best possible service as required regardless of time differences.

In any event, I have been in touch with my clients regarding the potential resolution of their claims.

My clients and I had a chance to read transcripts of your personal depositions as well as transcripts from the court hearings. You also may recall that I was questioning you myself at your deposition conducted in connection with the Bankruptcy proceeding.

As my clients and I understand it, according to the testimony you gave in court and during your depositions, you have accused your former lawyers Boris Parker and Harlan Greenberg and Marcus Nussbaum of failing to comply with their professional obligations to you and your companies. In plain English, you have claimed that your former lawyers caused significant financial damage to you and your companies by their failure to comply with their duties.

From your previous multiple statements we understood that you are further claiming that your former lawyers put your companies out of business. Is this a correct statement about your claims regarding the behavior of your former lawyers and the consequences you claim they caused?

If so, the question this raises is whether you have considered assigning or transferring your rights to seek recovery from those lawyers for the damages they caused to you and to your companies? Moreover, have you evaluated the amount of your potential claim against those lawyers?

My clients as well as other parties might be interested in obtaining those rights from your companies and you personally. Those rights could be a substantial contribution for the possible settlement of my clients claims.

Please note that with the exception of representing Mr. Hitrinov and Empire United Lines Co., Inc. in connection with the EDNY litigation, neither I nor my law firm represent any other parties involved in any litigation against you and your companies.

My clients and I appreciate your efforts to find a resolution to my clients' claims.

PLEASE UNDERSTAND THIS EMAIL CANNOT BE CONSIDERED AS LEGAL ADVICE OR AS A BASIS FOR ANY EXTENSION TO ANY DEADLINES SET BY THE COURT.

Regards,

Jon Werner

One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Tel: (212) 594-2400
Fax: (212) 594-4589
Mob: (917) 509-2797
jwerner@lyons-flood.com

 <http://www.lyons-flood.com/images-common/image001.png>

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From: Sergey Kapustin [<mailto:skapustin@yahoo.com>]

Sent: Tuesday, June 02, 2015 6:43 PM

To: Jon Werner

Subject: Отв:

ya ochen tronyt chto vi peregivaete za mnogestvo drygih kompani , takge hochy skozat chto advokata y menya net , poetomy ti mogesh mne pisat na pryamyu , nachyot moego bogatstva ti oshibaeshsya I prosto sgychaesh kraski , poetomy perstan lit vody pishi konkretnoe , chto nygno , esli 35 000 000 idi I sydi menya esli est za shto , a esli shto to hochesh konkretnoe skozat pishi po dely , a voobche v svedcii noch , chto ne spish ? spokoinoi nochi dai konkretnoe predlogenie ya rasmotru , I bez advokatov ,podhodit ono ili net (Tolko po sychestvy pogalyista)

Sergey K.
CEO, President
Global Auto, Inc.

вторник, 2 июня 2015 18:27 Jon Werner <jwerner@lyons-flood.com> писал(а):

Mr. Kapustin,

My clients understand that you are a wealthy man but not as wealthy as the deceased Mr. Berezovsky.

I mentioned several judgements against you and your entities for several reasons. Those judgments must be paid and as I mentioned already it may limit your ability to pay proposed by my clients' settlement amount. Also counsel for both DK International and Mr. Izbastin have made my clients aware that they have domesticated their judgments in New York and that they intend to attach any possible settlement or assets related to you and your companies.

Obviously, the same scenario will occur once you and your companies are faced with a judgment issued in the District of New Jersey.

The details for my clients claims for the amount of \$35,000,000 you may find in the documents I have already attached for your reference in my previous email.

In any case at the present time my clients are not looking for a new confrontation but rather looking for the possible reasonable resolution of their claims against you and your companies.

I encourage you to have your attorneys contact me at any time so we can discuss with them the legal prospective of the settlement agreement.

PLEASE UNDERSTAND THIS EMAIL CANNOT BE CONSIDERED AS LEGAL ADVICE OR AS A BASIS FOR ANY EXTENSION TO ANY DEADLINES SET BY THE COURT.

Regards,

Jon Werner

One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Tel: (212) 594-2400
Fax: (212) 594-4589
Mob: (917) 509-2797
jwerner@lyons-flood.com

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From: Sergey Kapustin [<mailto:skapustin@yahoo.com>]

Sent: Tuesday, June 02, 2015 12:41 PM

To: Jon Werner

Subject: ОТВ:

gdy vashih predlogeni , po resheniu voprosa, nadeus oni budyt razymnie ,

Sergey K.
CEO, President
Global Auto, Inc.

вторник, 2 июня 2015 12:26 Jon Werner <jwerner@lyons-flood.com> писал(а):

Mr Kapustin,

As I already mentioned in all my previous emails and as you should be aware already from the complaints in EDNY filed by you and filed by your companies, as well as the affidavits and answers in the EDNY, our law firm is representing not just Mr. Hitrinov, but also Empire United Lines Co., Inc., and on behalf of both Mr. Hitrinov and his company we have filed lawsuits against you and your companies.

As I already mentioned my clients are not looking for a new confrontation but are looking to finalize the previous confrontation by reaching a settlement between all parties. As I already indicated to you an original claim against you and related to your companies is seeking \$35,000,000.

I am currently in Gothenburg , Sweden at depositions and it delays and complicates my communication with my USA based clients due to the time difference.

I will get back to you shortly with more details of the proposed ideas to finalize the confrontation related to my clients' claims. My clients indicated to me that they may have some new approach for the way out for all parties involved in the EDNY case.

PLEASE UNDERSTAND THIS EMAIL CANNOT BE CONSIDERED AS LEGAL ADVICE OR AS A BASIS FOR ANY EXTENSION TO ANY DEADLINES SET BY THE COURT.

Regards,

Jon Werner
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Tel: (212) 594-2400
Fax: (212) 594-4589
Mob: (917) 509-2797
jwerner@lyons-flood.com

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-----Original Message-----

From: Sergey Kapustin [mailto:skapustin@yahoo.com]
Sent: Monday, June 01, 2015 11:20 PM
To: jwerner@lyons-flood.com
Subject:

Sent from my iPhone s kakimi klientami y vas chto neskolko klientov protiv mena , ? Chto ya dolgen sdelat chto bi vi mena ostavili v pokoe ? Chto vam yge nado? =



APPENDIX “2”

ORIGINAL:

From: Sergey Kapustin [<mailto:skapustin@yahoo.com>]

Sent: Tuesday, June 02, 2015 6:43 PM

To: Jon Werner

Subject: ОТВ:

ya ochen tronyt chto vi peregivaete za mnogestvo drygih kompani , takge hochy skozat chto advokata y menya net , poetomy ti mogesh mne pisat na pryamyu , nachyot moego bogatstva ti oshibaeshsya I prosto sgychaesh kraski , poetomy perstan lit vody pishi konkretnee , chto nygno , esli 35 000 000 idi I sydi menya esli est za shto , a esli shto to hochesh konkretnoe skozat pishi po dely , a voobche v svedcii noch , chto ne spish ? spokojnoi nochi dai konkretnoe predlogenie ya rasmotru , I bez advokatov ,podhodit ono ili net (Tolko po sychestvy pogalyista)

Sergey K.
CEO, President
Global Auto, Inc.

TRANSLATION:

I am very touched that you are concerned for many other companies. I also wanted to tell you that I do not have an attorney, that is why you may write to me directly. On the subject of my wealth, you are mistaken and you are talking nonsense. That is why you should stop speaking nonsense and write concretely about what you need. If it is \$35,000,000, go and sue me if you have something to sue about and if you want something, then write about it clearly. By the way, it is night in Sweden, why are you not sleeping? Good night. Give a concrete offer and I will review it, I am without an attorney, I don't know if that is good or not. Let's get to the point please.

Sergey K.
CEO, President
Global Auto, Inc.

ORIGINAL:

From: Sergey Kapustin [<mailto:skapustin@yahoo.com>]

Sent: Tuesday, June 02, 2015 12:41 PM

To: Jon Werner

Subject: ОТВ:

gdý vashih predlogeni , po resheniu voprosa, nadeus oni budyt razymnie ,

Sergey K.
CEO, President
Global Auto, Inc.

TRANSLATION:

Where is your offer for resolution of the questions. I anticipate that it will be reasonable.

Sergey K.
CEO, President
Global Auto, Inc.

ORIGINAL:

-----Original Message-----

From: Sergey Kapustin [mailto:skapustin@yahoo.com]

Sent: Monday, June 01, 2015 11:20 PM

To: jwerner@lyons-flood.com

Subject:

Sent from my iPhone s kakimi klientami y vas chto neskolko klientov protiv mena , ? Chto ya dolgen sdelat chto bi vi mena ostavili v pokoe ? Chto vam yge nado? =

TRANSLATION:

What clients? What do you have, a number of clients against me? What should I do to have you leave me alone? What do you want already?

APPENDIX “3”



Marcus Nussbaum <marcus.nussbaum@gmail.com>

Fwd: shipping documents to review

Sergey Kapustin <skapustin@yahoo.com>
To: marcus.nussbaum@gmail.com

Fri, May 27, 2016 at 2:37 PM

Отправлено с iPhone

Начало переадресованного сообщения:

От: Sergey Kapustin <skapustin@yahoo.com>
Дата: May 27, 2016 at 9:25:55 PM GMT+3
Кому: Jon Werner <jwerner@lyons-flood.com>
Тема: Перенапр.: shipping documents to review

Sent from my iPhone

Begin forwarded message:

From: "Jon Werner" <jwerner@lyons-flood.com>
Date: 27 May 2016 at 08:40:22 GMT+3
To: <skapustinamaria@yahoo.com>, "Sergey Kapustin" <skapustin@yahoo.com>
Subject: shipping documents to review

Mr. Kapustin,

Greetings. We recently received the attached documents from Mr. Nussbaum and kindly ask you to review them.

Regards,

Jon Werner

Lyons & Flood, LLP

One Exchange Plaza

55 Broadway, Suite 1501

New York, NY 10006

Tel: (212) 594-2400

Fax: (212) 594-4589

Mob: (917) 509-2797

jwerner@lyons-flood.com

NOTICE: This message contains information from the law firm of Lyons & Flood, LLP, which may be privileged, confidential, and exempt from disclosure under applicable law. If you have received this message in error, please inform us immediately and delete all copies of it from your system.

3 attachments



image001.png
14K

 **Notice of Filing of Shipping Documents.pdf**
1918K

 **Notice of Filing of Shipping Documents.pdf**
13338K

APPENDIX “4”

FEDERAL MARITIME COMMISSION, WASHINGTON, DC.

Informal Docket No.: 1953(I)

KAIRAT NURGAZINOV,

(Claimant)

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

(Respondents)

NOTICE OF FILING

Pursuant to the April 27, 2016 Order of the Federal Maritime Commission (the “Commission”), which directed that Complainant file and serve his initial disclosure in this matter on or before May 2, 2016, Complainant, through his Counsel, Marcus A. Nussbaum, Esq. and Seth M. Katz, Esq., hereby files the attached documents with the Commission.

Dated: May 2, 2016
Brooklyn, New York

Respectfully Submitted,



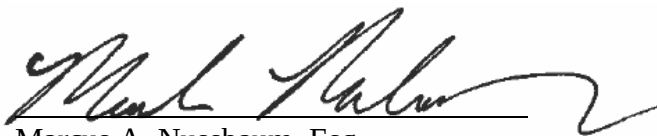
Marcus A. Nussbaum, Esq.
Seth M. Katz, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **NOTICE OF FILING** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and by email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', is written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainant
marcus.nussbaum@gmail.com

Dated: May 2, 2016 in Brooklyn, New York.

APPENDIX “5”

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

Complainants,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

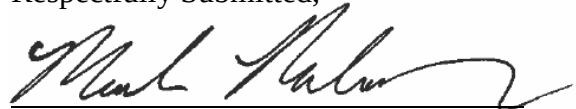
Respondents.

NOTICE OF FILING

Pursuant to the April 27, 2016 Order of the Federal Maritime Commission (the “Commission”), which directed that Complainants file and serve their initial disclosure in this matter on or before May 4, 2016, Complainants, through their Counsel, Marcus A. Nussbaum, Esq. and Seth M. Katz, Esq., hereby file the attached documents with the Commission.

Dated: May 4, 2016
Brooklyn, New York

Respectfully Submitted,



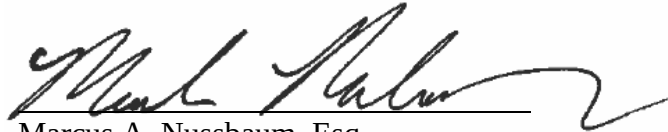
Marcus A. Nussbaum, Esq.
Seth M. Katz, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **NOTICE OF FILING** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and by email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainant
marcus.nussbaum@gmail.com

Dated: May 4, 2016 in Brooklyn, New York.

APPENDIX “6”

Fwd: документ от Хитринова**Sergey Kapustin** <skapustin@yahoo.com>

Mon, Mar 28, 2016 at 4:45 AM

To: Maria Temkin <maria@brownlegalconsulting.com>, "anna@brownlegalconsulting.com" <anna@brownlegalconsulting.com>, "marcus.nussbaum@gmail.com" <marcus.nussbaum@gmail.com>

> Мария , Анна , Маркус , посылаю вам письмо которое для моей подписи составил Хитринов и его Адвокат , что бы сравнить сумму моего приговора с иском который вы предъявляете Хитринову в суде камдон , данным письмом г-н хитринов подчеркивает , что клиенты не должны ничего получить , я не могу заехать на территорию США , так как Хитринов постоянно угрожает расправой как физической так и уголовной , я не могу так больше жить , когда над моей жизнью висит угроза расправы . Постоянно предлагает судить адвокатов , все переводы мне готовил Хитринов , да я понимаю что хитринов тот человек , который сделал так как это сегодня происходит , и все заявления в суд пишет Михаил хитринов , также все что делает адвокат Кривашеева делает Хитринов , я готов участвовать в любом суде , как ответчик , свидетель и пострадавший .просьба сообщить это в суд .

>
>
>
>

**1456442714686677.docx**

23K

APPENDIX “7”

From: Sergey Kapustin skapustin@yahoo.com
To: Maria Temkin; anna@brownlegalconsulting.com;
marcus.nussbaum@gmail.com
Sent: Monday, March 28, 2016 4:45AM
Subject: Fwd: document from Hitrinov
Attachment: 1456442714686677.docx; Untitled attachment 00083.txt

Maria, Anna, Marcus, I am sending you a document, which was prepared for my signature by Hitrinov and his lawyer so they could use as leverage the amount of what is owed to them with the amount of claim that you filed against Hitrinov in Camden court, by this writing mr, Hirinov confirms that the client should get nothing and I will not be able to enter the U.S. territory, as Hitrinov is always threatening me with physical means and criminal prosecution, I cannot live like that as there is a threat of violence is against my life. He is constantly offering me to sue the lawyers, all the translations were done for me by Hitrinov, yes I understand that hitrinov is the one who is responsible for what is going on today and all the filings in court are done by Michael hitrinov, and everything what the attorney for Krivosheev is doing is done by Hitrinov, I am ready to participate in any court as defendant, witness or injured party. I ask you to communicate it to the court.

APPENDIX “8”

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

EMPIRE UNITED LINES CO., INC. and
MICHAEL HITRINOV,

Plaintiffs,

-against-

SERGEY KAPUSTIN, GLOBAL AUTO, INC.,
EFFECT AUTO SALES, INC., G AUTO
SALES, INC. and SK IMPORTS, INC.,

Defendants.

Index No.

**AFFIDAVIT FOR JUDGMENT BY
CONFESSION (CPLR § 3218)**

STATE OF _____ :
: SS.:
COUNTY OF _____ :

SERGEY KAPUSTIN, being duly sworn, deposes and says:

1. I currently reside at 303 Ridgeway Street, County of Philadelphia, State of Pennsylvania and authorize entry of judgment in New York County, New York.
2. I am the sole principal and owner of Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc., and SK Imports, Inc. d/b/a Global Cars (the “Global Enterprise”).
3. Global Auto, Inc. is a New Jersey corporation with its primary place of business at 500 South Broad Street, Elizabeth, New Jersey 07202.
4. Effect Auto Sales, Inc. is a New Jersey corporation with its primary place of business at 500 South Broad Street, Elizabeth, New Jersey 07202.
5. G Auto Sales, Inc. is a New Jersey corporation with its primary place of business at 150-1 Carriage Lane, Delran, New Jersey 08075.
6. SK Imports, Inc. is a Pennsylvania corporation with its primary place of business at 303 Ridgeway Street, 2nd Floor, Philadelphia, PA 19116.

7. SK Imports, Inc. transacts business under the fictitious name Global Cars and is a successor to Global Auto, Inc., Effect Auto Sales, Inc. and G Auto Sales, Inc.

8. On my own behalf, and on behalf of the Global Enterprise, I hereby confess judgment in favor of Empire United Lines Co., Inc., a New York corporation, and Michael Hitrinov, a resident of New York, or their successors or assigns ("Empire") for the sum of One Million Eight Hundred Forty Seven Thousand Five Hundred Eight and 70/100 Dollars (\$1,847,508.70) and hereby authorize Empire or their successors, assigns or legal representatives to enter judgment for that sum, plus accrued interest and less any payments on account, jointly and severally against me and the Global Enterprise in the County of New York and in any jurisdiction where such judgment is enforceable in the circumstances set forth below.

9. This Affidavit of Judgment by Confession is executed pursuant to New York Civil Practice Law and Rules Section 3218 for a debt justly due to Empire arising out of the following facts:

- a. The Global Enterprise was involved in the business of purchasing automobiles in the United States at auctions for re-sale to buyers overseas.

Investment Agreement

- b. On or about September 2010, on behalf of the Global Enterprise, I negotiated and entered into an agreement with Empire pursuant to which Empire would invest certain funds in the Global Enterprise's automobile vehicle inventories in exchange for a profit-sharing arrangement plus a payment of 1.5% per month as an advance payment of Empire's share of anticipated profits from the re-sale by the Global Enterprise of the vehicles acquired through Empire's investment (the "Investment Agreement").

- c. Under the Investment Agreement the parties further agreed that, in exchange for Empire's investment, Empire was to receive a 60% equity interest in those vehicles in the Global Enterprise's inventory financed by Empire's investment.
- d. Under the Investment Agreement, the parties agreed to review the profit realized on the sale of each investment vehicles by the close of the 2012 calendar year and to distribute those profits on the basis of the parties' respective equity; *i.e.* 60% Empire / 40% Global Enterprise.
- e. The Investment Agreement further provided for Empire to be entitled to a right of possession in any vehicle acquired by the Global Enterprise through the Empire investment, until such time as it was released to a third-party buyer with the consent of Empire. Such vehicles were to serve as collateral for Empire's investment and in the event of breach of the Investment Agreement by the Global Enterprise any vehicles in Empire's possession could be sold by Empire to recoup the amounts due to Empire under the Investment Agreement.
- f. Finally, the Investment Agreement authorized Empire to demand repayment of the principal investment amount with 30 days' notice, and upon failure to provide repayment within 30 days to sell any of the vehicles in Empire's possession to recoup the amounts due to Empire under the Investment Agreement.

Failure to Repay Investment

- g. On December 27, 2012, Empire notified me and the Global Enterprise concerning the breach of the Investment Agreement and demanded repayment of all amounts due within 30 days.

- h. On December 27, 2012, the principal amount invested by Empire which remained justly due to be repaid was \$422,018.00.
- i. I, and the Global Enterprise, breached the Investment Agreement by failing to repay the amounts justly due to Empire, and by failing to distribute any profits from the sale of vehicles financed through the Investment Agreement.
- j. Due to this breach of the Investment Agreement, Empire was forced to sell some of the vehicles which were in their possession in January of 2013 in order to mitigate their damages and recoup the amounts due under the Investment Agreement.
- k. Empire sold 43 vehicles, receiving only \$332,206.59 in net proceeds from the sale after taking into account liabilities to the purchasers for significant repairs that had to be conducted in order to render the vehicles merchantable due to the poor condition of the vehicles.
- l. Empire's sale of the vehicles was authorized under the Investment Agreement and I believe that Empire's actions were reasonable under the circumstances.
- m. Thus, even after the sale of these vehicles \$89,811.41 remained justly due and owing to Empire

Failure to Pay Profit Sharing

- n. Between September 2010 and December 2012, approximately 543 vehicles were financed through the Investment Agreement and were sold by the Global Enterprise with no profits being distributed to Empire.

- o. Between September 2010 and December 2012, the average profit that the Global Enterprise was earning with the sale of each vehicle was approximately \$3,000.00.
- p. Thus, under the Investment Agreement, Empire was entitled to receive profits from the sale of the approximately 543 vehicles financed through the Investment Agreement, in the total amount of \$977,400.00 as nearly as can now be calculated.
- q. The Global Enterprise pre-paid profits in the total amount of \$212,719.30 to Empire in the form of the 1.5% monthly payments which served as advances on Empire's share of the profits.
- r. Thus, as of December 2012, there still remained a balance of \$764,680.70 in profits justly due and owing by the me and the Global Enterprise to Empire.

Unpaid Storage Charges

- s. On December 18, 2012, Empire notified me and the Global Enterprise that effective immediately the cost of storing vehicles in Empire's warehouse in New Jersey would be \$10.00 per day and also include a \$300.00 handling fee.
- t. I, and the Global Enterprise, have failed to pay these reasonable storage charges which have accrued with respect to sixteen vehicles that Empire stored in their warehouse in New Jersey from December 2012 through July, 2015.
- u. These unpaid storage charges are presently in the amount of \$160,810.00 and are justly due to Empire.

Defamation of Empire

- v. Beginning in late January 2013 and continuing through March 2013, on behalf of the Global Enterprise, I prepared and sent letters and emails to Empire's vendors, business partners, customers, and competitors containing falsehoods about Empire and misrepresentations of the facts surrounding the dispute between myself, Empire and the Global Enterprise. I also encouraged others to spread these letters containing false, malicious and defamatory statements concerning Empire.
- w. My purpose in writing and sending these letters and emails was to harass, embarrass, and defame Empire and try to cause them to lose valuable business relationships and reputational standing in the community and industry.
- x. In March 2013, on behalf of the Global Enterprise, I purchased and registered, or caused to be purchased and registered approximately 25 internet domains, and caused false, malicious, and defamatory statements concerning Empire to be published on those domains. When registering and creating these websites, I falsely registered and created them in such a manner as to make it appear that Empire had registered and created these websites. These websites were all hosted on the servers utilized by the Global Enterprise.
- y. I knew that the content on the websites was false when they were created and my purpose in registering and creating these websites was to harass, embarrass, and defame Empire and try to cause them to lose valuable business relationships and reputational standing in the community and industry.
- z. I understand that Empire has been seriously injured by the false and defamatory letters, emails, and websites which accused Empire falsely of engaging in

criminal conduct and agree that the value of this damage to Empire's reputation would be fairly valued at \$500,000.00.

Total Amounts Justly Due and Owing

aa. In total, \$1,847,508.70 remains justly due and owing to Empire by me and the Global Enterprise, broken down into the following categories:

1. Liability for repayment of investment: \$422,018.00;
2. Liability for payment of profit sharing: \$764,680.70;
3. Liability for payment of storage and handling charges:
\$160,810.00; and
4. Liability for creation and publication of defamatory letters, emails,
and websites: \$500,000.00.

10. Empire is presently litigating claims with respect to the amounts due and owing as described above against me and the Global Enterprise in the United States District Court for the Eastern District of New York. The Global Enterprise has been held to be in default in that litigation.

11. In order to avoid incurring further difficulty and expense in defending against these claims, I have decided to settle the claims between Empire, myself, and the Global Enterprise.

12. I and the Global Enterprise do not presently have the ability to pay Empire the amounts due and owing as described above, since I and the Global Enterprise are subject to freezing orders issued by the United States District Court for the District of New Jersey.

13. Therefore, by way of compromise, on behalf of myself and the Global Enterprise, I have agreed to enter into this Confession of Judgment.

14. This Confession of Judgment may be entered without any prior notice to myself or the Global Enterprise.

15. I further authorize entry of judgment against me and the Global Enterprise, jointly and severally, for costs and disbursements as provided in Section 3218(b) of the New York Civil Practice Law and Rules and reasonable attorney's fees incurred by Empire in the entry of this judgment and any subsequent proceedings to enforce such judgment.

16. This Confession of Judgment does not involve an installment sale as prohibited by New York Civil Practice Law and Rules Section 3201.

17. This confession of judgment is not for the purpose of securing Empire against a contingent liability.

SERGEY KAPUSTIN
In his individual capacity

SERGEY KAPUSTIN
President of Global Auto, Inc.

SERGEY KAPUSTIN
President of Effect Auto Sales, Inc.

SERGEY KAPUSTIN
President of G Auto Sales, Inc.

SERGEY KAPUSTIN
President of SK Imports, Inc.

February 4, 2016

APPENDIX “9”

**WAIVER OF ATTORNEY-CLIENT PRIVILEGE
AND WRITTEN CONSENT TO DISCLOSURE**

I, Sergey Kapustin, am the president and sole owner of Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc., and SK Imports, Inc. At all times, including the present, I have had full authority to speak on behalf of, and to make decisions with respect to, all of these companies.

I had previously retained the services of Marcus A. Nussbaum, Esq., Harlan Garrett Greenberg, Esq. and Igor A. Voloshen, Esq., as attorneys for Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. and SK Imports, Inc.

The attorney client relationship between Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. and SK Imports, Inc. and Marcus A. Nussbaum, Esq., Harlan Garrett Greenberg, Esq. and Igor A. Voloshen, Esq. has now ended.

On behalf of Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. and SK Imports, Inc. I hereby expressly waive any and all attorney client privileges that the companies hold, or that I hold, as a result of the legal representation of the companies by Marcus A. Nussbaum, Esq., Harlan Garrett Greenberg, Esq. and Igor A. Voloshen, Esq., and expressly grant permission to Marcus A. Nussbaum, Esq., Harlan Garrett Greenberg, Esq. and Igor A. Voloshen, Esq., or anyone associated with them, to discuss all issues I raised privately with them and to disclose all written communications I, and anyone associated with Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. and SK Imports, Inc., have had with them.

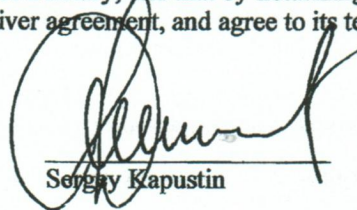
I hereby represent that there was no force or threat to me by anyone for me to prepare and sign this waiver of confidentiality and consent to disclose. I further represent that, on behalf of Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. and SK Imports, Inc., I knowingly and intelligently waive any and all attorney client privileges those companies had, or that I had, with Marcus A. Nussbaum, Esq., Harlan Garrett Greenberg, Esq. and Igor A. Voloshen, Esq. and/or anyone associated with them.

I am fully aware that having signed this waiver agreement, I cannot hold Marcus A. Nussbaum, Esq., Harlan Garrett Greenberg, Esq. and/or Igor A. Voloshen, Esq., or anyone associated with them, whether during or after the attorney-client relationship, liable for disclosing confidential and/or privileged information about me or the companies.

I further agree that I will sign this agreement in the presence of a notary, and that by notarizing this agreement, I have willingly, and knowingly executed this waiver agreement, and agree to its terms voluntarily.

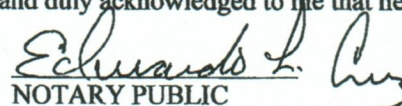
Dated: This 15 day of January, 2016

STATE OF Pennsylvania
COUNTY OF Bucks


Sergey Kapustin

On January 15, 2016 before me personally came Sergey Kapustin, to me known, and known to me to be the individual described in, and who executed the foregoing WAIVER OF ATTORNEY-CLIENT PRIVILEGE AND WRITTEN CONSENT TO DISCLOSURE, and duly acknowledged to me that he executed the same.

COMMONWEALTH OF PENNSYLVANIA
NOTARIAL SEAL
EDUARDO L. CRUZ, NOTARY PUBLIC
BRIDGEPORT BORO, MONTGOMERY COUNTY
MY COMMISSION EXPIRES OCTOBER 11, 2016


NOTARY PUBLIC